BRENDAN NGEHSI NEWANFORBI
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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area, Respondents.	Case No. 26CV191136 Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027 9:00 a.m., Department 25 Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

[ALTERNATIVE PROPOSED] JUDGMENT AND DIRECTION FOR CERTIFICATION

Review draft. Historical hearing particulars are preserved, not freshly confirmed. Signatures, exhibits, service and current case status require completion.

This alternative is for use only if the Court makes all findings below on evidence actually received and determines that this relief is properly within the operative pleading and notice. It is not an alternative to proving those matters.

Required findings

The Court finds:

1. Petitioner was a victim of the qualifying criminal activity of [specify offense], established by the following facts, including the absence of lawful authority for the restraint: [specify findings and supporting evidence].

2. Petitioner has been helpful, is being helpful, or is likely to be helpful concerning that qualifying activity, with the applicable statutory presumption and any asserted rebuttal resolved as follows: [specify findings].

3. The April 20, 2026 no-qualifying-activity determination is materially erroneous for the reasons stated in the Court's findings, and every condition necessary for the certification directed below is established.

4. No reasonable lawful alternative to certification remains under Penal Code section 679.10; the direction is properly before the Court under the operative pleading and adequate notice.

Judgment and direction

The April 20, 2026 denial is set aside. A peremptory writ shall issue directing Respondents California Highway Patrol and G. Serrato, in his official capacity, to complete, execute and deliver the Form I-918 Supplement B certification in accordance with the Court's findings within [____] days after service of the writ.

Respondents shall file and serve a return documenting compliance within [____] days after service. The Court retains jurisdiction to determine compliance and make appropriate enforcement orders.

No allegation is treated as a finding merely because the case survived demurrer or federal screening. This judgment awards no damages and adjudicates neither immigration status nor the dismissed causes of action.

IT IS SO ORDERED AND ADJUDGED.

DATED: _____

_____

JUDGE OF THE SUPERIOR COURT